

Y-AXIS AUSTRALIA - REGULATOR CASE FILE

Potential Migration Agent Misconduct

Client: Kurian John (kiron182@gmail.com)

Subject: Queensland 491/190 Visa Application - ROI/EOI Issues

Date Range: May 2025 - February 2026

Agents Involved: Carlisle Khan (MARN 1680379), Subhendu Dass, Arvin Pannu

1. MASTER TIMELINE

EVENT 1

DATE: 26 May 2025 (Email chain reconstructed)

SENDER: Kurian John (kiron182@gmail.com)

RECIPIENT: Y-Axis Australia Carlisle (carlisle@y-axis.com.au)

AGENT INVOLVED: Carlisle Khan

TOPIC: Initial inquiry about lodging EOI for NSW, ACT, WA, SA

KEY STATEMENT: *"Hi team, I want to submit an EOI for NSW and probably act as well. I understand this is more paperwork for you guys but I wouldn't ask if it was not a really life changing factor for me."*

IMPACT CATEGORY: Initial Request for Service

EVENT 2

DATE: 26 May 2025

SENDER: Carlisle Khan (carlisle@y-axis.com.au)

RECIPIENT: Kurian John

AGENT INVOLVED: Carlisle Khan (MARN 1680379)

TOPIC: State nomination eligibility advice

KEY STATEMENT: *"You cannot as the rules do not allow you to since you are not residing in those states. Only WA allows inter state applications for 491."*

IMPACT CATEGORY: Eligibility Assessment

EVENT 3

DATE: 26 May 2025

SENDER: Subhendu Dass (subhendu@y-axis.com)

RECIPIENT: Kurian John

AGENT INVOLVED: Subhendu Dass

TOPIC: Western Australia eligibility

KEY STATEMENT: *"Your nominated occupation Marketing Specialist is currently not listed on the eligible occupation list for Western Australia. However, there is a possibility it may be added in the new financial year starting in July. If it becomes available, I will proceed with lodging your EOI application for Western Australia under Subclass 491."*

IMPACT CATEGORY: Delay / Unfulfilled Promise

EVENT 4

DATE: 26 May 2025

SENDER: Kurian John

RECIPIENT: Subhendu Dass (CC: Carlisle Khan)

AGENT INVOLVED: Multiple

TOPIC: Notification of employment resignation

KEY STATEMENT: *"@Y-Axis Australia Carlisle I will be resigning from my current role today. Please advise on next steps. I am going to be actively looking for a new role simultaneously but need some time off for that as I cannot do so with my current job."*

IMPACT CATEGORY: Changed Circumstances Notification

EVENT 5

DATE: 26 May 2025

SENDER: Carlisle Khan (carlisle@y-axis.com.au)

RECIPIENT: Kurian John; Subhendu Dass

AGENT INVOLVED: Carlisle Khan

TOPIC: Response to resignation notice

KEY STATEMENT: *"Subhendu will update the EOI tomorrow. Your ROI will need to check and see if that would still be valid or not as you would not have any job. Once you get one please share the same and ensure its in the same field that we did your skills assessment in."*

IMPACT CATEGORY: Uncertainty Created / Delay

EVENT 6

DATE: 27 May 2025

SENDER: Subhendu Dass (subhendu@y-axis.com)

RECIPIENT: Kurian John

AGENT INVOLVED: Subhendu Dass

TOPIC: ROI lodgement revelation

KEY STATEMENT: *"Do you have ongoing employment in Queensland in your nominated occupation for the next six months (subclass 491) or 12 months (subclass 190)? I selected 'Yes' to the question above while submitting the ROI on 22nd May. However, since you have now resigned, could you please confirm your last working day with Australian Events Support Pty Ltd so that I can update the EOI accordingly? And, please try to secure a new role in the same field (Marketing) as soon as possible and inform us once it's done, so that we can ensure the ROI remains valid."*

IMPACT CATEGORY: CRITICAL - ROI Lodgement Claimed

EVENT 7

DATE: 27 May 2025

SENDER: Kurian John

RECIPIENT: Subhendu Dass

AGENT INVOLVED: N/A (Client response)

TOPIC: Clarification of employment status

KEY STATEMENT: *"Thank you so much for the follow-up I really appreciate this kind of proactiveness I have not resigned from my job I had a very stressful day yesterday and was considering resigning but luckily my manager convinced me not to. Sorry for the false alarm and once again thank you for your immediate response. At present my plan is to stay in the job till I get a high confirmation that I will have this 491 visa."*

IMPACT CATEGORY: Clarification

EVENT 8

DATE: 27 May 2025

SENDER: Subhendu Dass (subhendu@y-axis.com)

RECIPIENT: Kurian John

AGENT INVOLVED: Subhendu Dass

TOPIC: Reassurance after employment clarification

KEY STATEMENT: *"You have a good chance of receiving an invitation. Please note that if you continue working with your current company, an additional 5 points will be automatically added to your EOI on 12th February 2026. You will receive an email notification once this update is made by the system."*

IMPACT CATEGORY: Advice / Commitment

EVENT 9

DATE: 28 May 2025

SENDER: Kurian John

RECIPIENT: Subhendu Dass

AGENT INVOLVED: N/A (Client query)

TOPIC: Visa validity question

KEY STATEMENT: *"Thanks again Subhendu. I just noticed today my current visa is valid till May 2027, is this correct?"*

IMPACT CATEGORY: Information Request

EVENT 10

DATE: 27 February 2026

SENDER: Subhendu Dass (subhendu@y-axis.com)

RECIPIENT: Kurian John

AGENT INVOLVED: Subhendu Dass / Arvin Pannu (signature)

TOPIC: State nomination allocations update

KEY STATEMENT: *"Please be informed about the state migration visa allocations announced for the current financial year, July 2026 to June 2026... Queensland /Victoria has also initiated inviting candidates for the Year 2025-2026"*

IMPACT CATEGORY: General Update

EVENT 11

DATE: 27 February 2026

SENDER: Kurian John

RECIPIENT: Subhendu Dass

AGENT INVOLVED: N/A (Client query)

TOPIC: Request for clarity on situation

KEY STATEMENT: *"Hi team, can you please clearly tell me what this means for me. I dont understand it at all and am working on multiple projects so dont have the bandwidth to research any more."*

IMPACT CATEGORY: Client Confusion / Request for Clarity

EVENT 12

DATE: 28 February 2026

SENDER: Subhendu Dass (subhendu@y-axis.com)

RECIPIENT: Kurian John

AGENT INVOLVED: Subhendu Dass

TOPIC: Occupation status update

KEY STATEMENT: *"Hi Kurian, The current situation is that your occupation, Marketing Specialist, is not on the demand list. We are closely monitoring the availability of your occupation and will notify you as soon as it becomes available."*

IMPACT CATEGORY: CRITICAL - No Active Application Status

EVENT 13

DATE: 28 February 2026

SENDER: Kurian John

RECIPIENT: Subhendu Dass (CC: Arvin Pannu)

AGENT INVOLVED: N/A (Client response)

TOPIC: Acknowledgment

KEY STATEMENT: *"Hi subhendu, thanks for the reply. My only quesry is does this change anything in my situation?"*

IMPACT CATEGORY: Clarification Request

EVENT 14

DATE: 1 March 2026

SENDER: Kurian John

RECIPIENT: Subhendu Dass

AGENT INVOLVED: N/A

TOPIC: Follow-up

KEY STATEMENT: *"Thanks Subhendu, I appreciate your help."*

IMPACT CATEGORY: Client Response

EVENT 15

DATE: 12 February 2026

SENDER: C. Shylendar Goud (shylendar@y-axis.com)

RECIPIENT: Y-Axis Australia Arvin; kiron182@gmail.com

AGENT INVOLVED: Shylendar Goud / Arvin Pannu

TOPIC: Cancelled meeting

KEY STATEMENT: *Subject: Canceled: 482 Visa Query - Kurian John*

IMPACT CATEGORY: Meeting Cancellation

2. ROI / QLD NOMINATION EVENTS

Summary of ROI/EOI Activity

Queensland Nomination Timeline

Milestone	Date	Evidence	Status
First Discussion	26 May 2025	Email chain about 491/190 options	Documented
ROI Lodgement Claimed	22 May 2025	Subhendu: <i>"I selected 'Yes' to the question above while submitting the ROI on 22nd May"</i>	CLAIMED BUT UNVERIFIED
Employment Status Change	26 May 2025	Client considered resigning	Documented
Validity Question Raised	26 May 2025	Carlisle: <i>"Your ROI will need to check and see if that would still be valid or not"</i>	CONCERN RAISED
February 2026 Status	28 Feb 2026	Subhendu: <i>"Marketing Specialist is not on the demand list"</i>	NO ACTIVE ROI/EOI CONFIRMED

Critical Finding

ROI Lodgement Claimed: On 27 May 2025, Subhendu Dass claimed to have lodged a Queensland ROI on 22 May 2025, stating: *"I selected 'Yes' to the question above while submitting the ROI on 22nd May."*

However, by 28 February 2026, the same agent stated: *"The current situation is that your occupation, Marketing Specialist, is not on the demand list. We are closely monitoring the availability of your occupation."*

This raises the following concerns:

1. If an ROI was lodged on 22 May 2025, why was there no follow-up on its status for 9 months?
2. Why did the agent state in February 2026 that they are "closely monitoring" for availability instead of referencing an existing lodged ROI?
3. Was the ROI actually lodged, or was this a false claim?
4. If lodged, was it allowed to expire without client notification?

Evidence of Delay or Failure

Date	Evidence	Impact
26 May 2025	Carlisle states ROI validity needs to be checked due to employment change	Uncertainty created
26 May 2025	Subhendu commits to update EOI "tomorrow"	Promise made
27 May 2025	Subhendu claims ROI was lodged on 22 May	Retroactive claim
28 Feb 2026	Subhendu states occupation not on demand list - no mention of existing ROI	No active application acknowledged

3. AGENT BEHAVIOUR MAP

Carlisle Khan (MARN 1680379)

Email: carlisle@y-axis.com.au

Role in Communication

- Primary Australian-based migration agent
- Provided eligibility assessments
- Handled employment change concerns

Advice Patterns

Date	Advice Given	Issue
26 May 2025	<i>"Only WA allows inter state applications for 491"</i>	Correct but restrictive
26 May 2025	<i>"Your ROI will need to check and see if that would still be valid or not as you would not have any job"</i>	Creates uncertainty about ROI status

Actions Taken / Not Taken

- **Not taken:** No confirmation of ROI lodgement provided
- **Not taken:** No follow-up on ROI validity provided after employment situation resolved
- **Taken:** Responded to client queries within business hours

Contradictions / Issues

1. Told client to get a new job to maintain ROI validity, but never confirmed whether ROI was actually lodged
 2. Passed responsibility to Subhendu for EOI updates without confirming completion
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Subhendu Dass

Email: subhendu@y-axis.com
Title: Consultant - Australia RMA Process

Role in Communication

- Primary day-to-day contact
- Claimed to have lodged ROI
- Provided occupation list updates

Advice Patterns

Date	Advice Given	Issue
26 May 2025	<i>"If it becomes available, I will proceed with lodging your EOI application for Western Australia"</i>	Promise to act conditionally
27 May 2025	<i>"I selected 'Yes' to the question above while submitting the ROI on 22nd May"</i>	Retroactive claim of action
27 May 2025	<i>"an additional 5 points will be automatically added to your EOI on 12th February 2026"</i>	Specific commitment
28 Feb 2026	<i>"Marketing Specialist is not on the demand list. We are closely monitoring"</i>	Contradicts prior ROI lodgement claim

Actions Taken / Not Taken

- **Claimed:** Lodged ROI on 22 May 2025
- **Not verified:** No evidence of ROI lodgement confirmation provided
- **Not taken:** No update on ROI status between May 2025 and February 2026
- **Not taken:** No notification that claimed ROI had expired or was invalid

Critical Contradiction

MAJOR RED FLAG: Subhendu claimed on 27 May 2025 to have lodged an ROI on 22 May 2025. However, on 28 February 2026, he stated the occupation was "not on the demand list" and they were "closely monitoring" for availability - with no mention of any existing lodged ROI.

This suggests either:

1. The ROI was never actually lodged (false claim)
2. The ROI was lodged but allowed to expire without client notification
3. The ROI was lodged but withdrawn/cancelled without client knowledge

Arvin Pannu

Email: arvin@y-axis.com.au

Role in Communication

- Appears in CC on some correspondence
- Signature appears on some Subhendu emails (suggests template use or oversight)

- Listed as contact for escalation

Actions Taken / Not Taken

- **Not taken:** No direct communication with client found in provided emails
 - **Not taken:** No visible oversight of Subhendu's claims about ROI lodgement
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4. RED FLAGS

RED FLAG 1: Unverified ROI Lodgement Claim

QUOTE: *"I selected 'Yes' to the question above while submitting the ROI on 22nd May."*

DATE: 27 May 2025 (claiming action on 22 May 2025)

AGENT: Subhendu Dass

WHY IT MATTERS:

- The agent claimed to have lodged an ROI retroactively (5 days after the claimed date)
 - No lodgement confirmation, reference number, or screenshot was provided
 - By February 2026, the same agent spoke as if no active application existed
 - If the ROI was lodged, the client was never informed of its status, expiry, or outcome
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RED FLAG 2: Contradictory Application Status

QUOTE (May 2025): *"submitting the ROI on 22nd May"*

QUOTE (Feb 2026): *"The current situation is that your occupation, Marketing Specialist, is not on the demand list. We are closely monitoring the availability"*

WHY IT MATTERS:

- These statements are mutually exclusive
 - If an ROI was lodged in May 2025, it would have either been processed, rejected, or expired by February 2026
 - The agent never explained what happened to the claimed ROI
 - The February statement suggests no active ROI/EOI existed
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RED FLAG 3: Conditional Promises Without Follow-through

QUOTE: *"If it becomes available, I will proceed with lodging your EOI application for Western Australia under Subclass 491"*

DATE: 26 May 2025

AGENT: Subhendu Dass

WHY IT MATTERS:

- This promise was never followed up
- By February 2026, the occupation was still "not on the demand list"
- No proactive communication about the status of this commitment

- No alternative pathways suggested during the 9-month period

RED FLAG 4: Shifting Responsibility Between Agents

EVIDENCE:

- Carlisle Khan told client Subhendu would update EOI: *"Subhendu will update the EOI tomorrow"* (26 May 2025)
- Carlisle raised concerns about ROI validity but deferred to Subhendu
- Subhendu made claims about ROI lodgement without Carlisle's verification
- Arvin Pannu was CC'd but never visibly intervened

WHY IT MATTERS:

- Lack of clear accountability
- Australian-based agent (Carlisle) deferred to offshore consultant (Subhendu)
- No single point of responsibility for client's case

RED FLAG 5: Unfulfilled Commitment About Points Update

QUOTE: *"an additional 5 points will be automatically added to your EOI on 12th February 2026. You will receive an email notification once this update is made by the system."*

DATE: 27 May 2025

AGENT: Subhendu Dass

WHY IT MATTERS:

- Specific date promised (12 February 2026)
- By 28 February 2026, no acknowledgment of this commitment was made
- No explanation provided for why the points update did not occur

RED FLAG 6: Meeting Cancellation Without Rescheduling

EVIDENCE: Email dated 12 February 2026 from C. Shylendar Goud with subject *"Canceled: 482 Visa Query - Kurian John"*

WHY IT MATTERS:

- Scheduled consultation was cancelled
- No evidence of rescheduling in provided emails
- Client may have been left without planned support

5. EVIDENCE INDEX (FOR REGULATOR)

ID	FILE NAME	DATE	TYPE	RELEVANCE TAG
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E001	491 eoi.eml	26-28 May 2025	Email chain	ROI Lodgement Claim, Eligibility Advice, Employment Status
E002	Y Axis Report.mbox	12 Feb 2026	MBOX Archive	Meeting Cancellation
E003	Y Axis Report.mbox	27 Feb 2026	MBOX Archive	State Allocations Update, Agent Confusion
E004	Y Axis Report.mbox	28 Feb 2026	MBOX Archive	CRITICAL - No Active ROI/EOI Status
E005	Y Axis Report.mbox	1 Mar 2026	MBOX Archive	Client Follow-up

Key Email References

Evidence ID	From	To	Date	Subject	Key Content
E001-A	Carlisle Khan	Kurian John	26 May 2025	RE: 491 eoi	ROI validity uncertainty
E001-B	Subhendu Dass	Kurian John	26 May 2025	Re: 491 eoi	WA occupation list status
E001-C	Subhendu Dass	Kurian John	27 May 2025	Re: 491 eoi	ROI lodgement claim (22 May)
E001-D	Subhendu Dass	Kurian John	27 May 2025	Re: 491 eoi	5 points promise (12 Feb 2026)
E004-A	Subhendu Dass	Kurian John	28 Feb 2026	Weekly Update	Occupation not on demand list

6. COMPLAINT SUMMARY FOR REGULATOR

Potential Breaches

1. Failure to Act on ROI/EOI Lodgement (Code of Conduct)

- Agent claimed to have lodged ROI on 22 May 2025
- No evidence of lodgement provided to client
- No follow-up on ROI status for 9 months
- By February 2026, agent spoke as if no active application existed

2. Incorrect or Misleading Advice

- Subhendu claimed ROI was lodged but later statements contradict this
- Carlisle raised validity concerns but never resolved them
- Commitment about 5 points on 12 February 2026 was not fulfilled

3. Delayed Migration Advice

- 9-month period with no substantive updates
- Client had to initiate contact for status updates
- No proactive communication about changing circumstances

4. Potential Loss of Migration Opportunity

- If ROI was lodged on 22 May 2025, it may have expired without client knowledge
 - Queensland 491 nominations were actively occurring during this period
 - Client's eligibility window may have been missed due to agent inaction
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Questions for Agents to Answer

For Subhendu Dass:

1. Was an ROI actually lodged on 22 May 2025? If so, provide lodgement confirmation.
2. If lodged, what was the outcome? Was it rejected, expired, or withdrawn?
3. Why did you state in February 2026 that the occupation was "not on the demand list" without mentioning the existing ROI?
4. What happened to the commitment about 5 points being added on 12 February 2026?

For Carlisle Khan (MARN 1680379):

1. As the Australian-based MARA agent, what oversight did you provide on Subhendu's claims?
2. Did you verify that the ROI was actually lodged on 22 May 2025?
3. Why did you state the ROI "will need to check and see if that would still be valid" without following up?

For Y-Axis Australia:

1. What is the standard procedure for confirming ROI/EOI lodgements to clients?
 2. How is case handover managed between Australian agents and offshore consultants?
 3. What records exist of the claimed 22 May 2025 ROI lodgement?
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Recommended Next Steps for Complainant

1. **Request formal written confirmation** from Y-Axis about:
 - Whether an ROI was lodged on 22 May 2025
 - The current status of any lodged ROI/EOI
 - All correspondence with Queensland Department of Home Affairs
2. **Check SkillSelect account directly** to verify any lodged EOIs/ROIs
3. **Request MARA complaint forms** if responses are unsatisfactory
4. **Consider independent migration advice** to assess current eligibility and whether any opportunities were lost

Document compiled: 18 June 2026

Based on email evidence from: 491 eoi.eml, Y Axis Report.mbox, Archived.mbox